

address.’ Uniform Superior Court Rule 4.6.” (*Tyliczka v. Chance* (2012) 313 Ga.App. 787, 787, fn.1.) Although Isidro adds language indicating that Rule 4.6 applies to parties, the Rule 4.6 is specific to attorneys and it does not state that it applies to self-represented parties.

Service of pleadings after the original complaint is made “by delivering a copy to the person to be served or by mailing it to the person to be served at the person’s last known address...” (Ga. Code Ann. § 9-11-5.) In *Syed v. Merchant’s Square Office Bldgs., LLC* (2020) 354 Ga.App. 365 the court mailed notices to plaintiff’s law firm, but despite using the correct address, the law firm did not receive the notices and the case was dismissed. The court upheld the trial court’s denial of a motion to set aside the dismissal. The court decision was not based on the losing party’s knowledge, but on whether the trial court had properly discharged its duty of mailing the notice to the correct address. (*Id.* at 367.) In *Saxton v. Davis* (2003) 262 Ga.App. 72, 73 (overruled on another issue in *Ragan v. Mallow* (2012) 319 Ga.App. 443, 447), the court noted that due process was met when the papers were mailed to the opposing party’s last known address.

California has mailing requirements similar to those in Georgia. Although electronic service is often used (and required in many cases), when serving by mail, parties are to send documents to “the office address as last given by that person on any document filed in the cause and served on the party making service by mail; otherwise at that party’s place of residence.” (Code of Civil Procedure section 1013.) Parties are also required to provide notice when they change their address, or other contact information. (California Rules of Court, rule 2.200.)

The fundamental flaw with Isidro’s argument is that when Alls first appeared in the Georgia case he provided the court with his current (and thus last known) address in Conyers. The court apparently failed to input the correct address for Alls and thus, mailed documents to Alls at an *incorrect* address. This is not a situation where a party gave the court an address and then changed addresses during the pendency of the litigation. Nor is Alls arguing that the notice was sent to the correct address, but he did not receive it. Rather, the facts show that Alls gave the court his correct address at the first opportunity (his answer) and the court failed to use that address.

Here, the documents provided to the Court show that Ponds listed a Loganville address for Alls, which the Georgia court appeared to use throughout the case. Alls provided a different address in Conyers when he filed is response to Ponds’ complaint. Although neither side provides a copy of the notice setting the trial date, the documents available create a presumption that Ponds and the Georgia court were using an incorrect address for Alls, even though he provided the correct address. The Court finds that there was a violation of due process when the Georgia court held trial and then entered judgment without having provided sufficient notice to Alls of the trial date. Having found a violation of due process, the Court **grants** Alls’s motion to vacate the sister state judgment.

16. 9:00 AM CASE NUMBER: MSC19-01228

CASE NAME: KENZIE CONSULTING VS CUNNINGHAM

***HEARING ON MOTION IN RE: SET ASIDE JUDGMENT ENTERED AGAINST DEFENDANTS**

FILED BY: CUNNINGHAM, HART PEARSON

TENTATIVE RULING:

This hearing has been continued to June 11, 2026.

17. 9:00 AM CASE NUMBER: MSC22-00088

CASE NAME: KALAMAS VS. JOHN MUIR HEALTH

***HEARING ON MOTION IN RE: FOR SANCTIONS**

FILED BY: KALAMAS, ALICIA

TENTATIVE RULING:

Plaintiff Alicia Kalamas moves for sanctions on the basis of purported misrepresentations by Defendant John Muir Health's (JMH) counsel in the Motion for Attorneys' Fees.

The Court is struggling to parse all of the alleged misrepresentations. To the best of its abilities, the Court believes the following are disputed: (1) that Plaintiff was "sanctioned" \$500,000 during the litigation; (2) that Plaintiff contradicted herself in stating the case was "not about the money" "despite asking for millions of dollars"; and (3) the motion was frivolous. On reply, Plaintiff focuses only on the last of these three issues.

It appears that Defendant was imprecise with its language regarding the "sanction." Plaintiff *was* ordered to pay fees relating to an Anti-SLAPP dismissal, *and* the judicial referee found that Plaintiff had engaged in misbehavior, but those two issues were separate. Counsel should be careful when using strong words, but this language does not rise to the level of sanctionable conduct under Code of Civil Procedure sections 128.5 and 128.7.

Although the Court does understand how a whistleblower plaintiff can seek extensive damages but also seek changes—and be willing to trade one for the other—that does not make Defendant's misunderstanding of such motivations frivolous or in bad faith.

Finally, the Court will at this point decline to find the attorneys' fees motion frivolous. The Court of Appeal is reviewing that order, and if, after appellate review, it appears that the motion was baseless, the Court may revisit it. This is not intended to encourage further motion practice in this case, but merely to note that such a determination is premature.

For these reasons, the Motion is **denied**.

Discovery Law & Motion

18. 9:01 AM CASE NUMBER: C25-00992

CASE NAME: STEVEN NEIL VS. FORD MOTOR COMPANY

***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**

FILED BY: NEIL, STEVEN D.

TENTATIVE RULING: